National Law School Journal

Volume 18
Issue 2 *Pluralist Agreement and Constitutional Transformation: Special Issue II*

Article 1

12-2024

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Recommended Citation
Dhanda, Amita (2024) "Book Review—Of Law and Life: Upendra Baxi in Conversation with Arvind Narrain, Lawrence Liang, Sitharamam Kakarala, and Sruti Chaganti (Orient BlackSwan 2024)," *National Law School Journal*: Vol. 18: Iss. 2, Article 1.
DOI: https://doi.org/10.55496/KSRU1384
Available at: https://repository.nls.ac.in/nlsj/vol18/iss2/1

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Reviewed and edited
Pending layout and pagination

BOOK REVIEW

SWINGING ON WINDMILLS OF LOVE, LIFE, AND LAW: THE QUIXOTIC PURSUITS OF UPENDRA BAXI

Of Law and Life: Upendra Baxi in Conversation with Arvind Narrain, Lawrence Liang, Sitharamam Kakarala, and Sruti Chaganti (Orient BlackSwan 2024)

Amita Dhanda*

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DOI: https://doi.org/10.55496/KSRU1384

Ever since his appearance on the Indian legal firmament, Upendra Baxi has been loved and disliked, celebrated and reviled, supported and opposed. Whatever the nature of the emotion, negative or positive, Baxi has evoked a response. *Of Law and Life: Upendra Baxi in Conversation with Arvind Narrain, Lawrence Liang, Sitharamam Kakarala, and Sruti Chaganti* is thus a book on a scholar who has a larger-than-life presence in the Indian legal community. This presence arises not from the offices he has occupied but from his courage to swing on windmills for the beliefs he held, the causes he espoused, and the reforms he desired. The book reflects on his very many ventures, successful and unsuccessful—teaching, research, law reform, and activism. The series editors write that this book on Baxi was envisaged to better understand the history he embodies.[1]

This review begins by elaborating on the melange of forms adopted by the book. It then reflects on the different themes emerging from this narrative on Baxi's life and work. The review next dwells on the book's pedagogic possibilities. Since the book is not a comprehensive but a selective narrative of Baxi's 'law and life', there are matters that have not been included in it—I conclude this review by giving voice to these silences.

I WHAT IS THE FORM AND GENRE OF THE BOOK?

I begin with this question because a connection is often made between the expectations of a reader and the genre of a book. As the title suggests, the book was conceptualised as

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[1] 'From the Series Editors' in *Of Law and Life: Upendra Baxi in Conversation with Arvind Narrain*, *Lawrence Liang*, *Sitharaman Kakarala*, *Sruti Chaganti* (Orient Blackswan 2024) xix.

conversations on law and life between Baxi and the four interlocutors/editors. Explaining the reason behind this, in the 'Introduction', the editors Narrain and Kakarala write that the book aimed to capture the spontaneity, wit, and charisma of the speaking Baxi. Consequently, the four interlocutors recorded a series of conversations with him in 2008. The edited transcript of the recordings became the first draft. Baxi then reworked this text and updated it right up to 2023. Due to this process of making and revising, the book, according to the editors, falls somewhere 'between biography—really a third person's view of the subject's life—and autobiography, based on the subject's own view of his or her life'.[2]

The dialogic origin of the book explains why Baxi contends that it is not an autobiography but a series of conversations on his life and work. Autobiographies, he says, 'can be read in many ways—as acts of self-conceit, confession, narrative of past life, as didacticism, history, therapy, aesthetics, prophecy. In contrast "conversations" mean just talking about things, events, oneself and or as others (as Jean Paul Ricoeur would prefer)—a narrative which may be shaped and reshaped across past, present and future.'[3] From its first draft to the final text, the book evolves as an interplay between the spoken and the written word. Even as the form of conversation has been retained, the nature of the speech changes—a conversation that began in speech but continued in writing.

Baxi, in an interview with me, described himself as a non-systematic thinker and writer who lets his mind write stuff, and themes emerge from what he writes.[4] He added that working within a single matrix with one central argument made him impatient. This refusal to be cabined within a single category is also evidenced in the substance and form of this book. There are conversations between Narrain, Liang, and Baxi on the various ways of engaging with the rights of indigenous people.[5] There is an extended dialogue between the three on how to read Marx[6] and not indulge in vulgar criticism[7] and the various questions surrounding EP Thompson's exposition on the rule

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[2] Narrain et al (n 1) 3.

[3] ibid 44.

[4] Amita Dhanda, 'Interview with Upendra Baxi' in Dhanda (ed), *Law, Justice, Society: Selected Works of Upendra Baxi, Volume 1: Human Rights* (Oxford University Press 2024) 777–778.

[5] 'Chapter Five' in Dhanda (n 4) 138–150.

[6] Narrain et al (n 1) 271–292.

[7] ibid 301–302. Narrain, Liang, and Baxi jointly bemoan the fact that a lot of criticism on Marx is based on an incomplete reading. They specifically refer to how Marx describing religion as 'the sigh of the oppressed' is often forgotten and only his 'opium of the masses' is invoked.

of law.[8] A back-and-forth on strategic essentialism in human rights (Narrain and Baxi).[9] A dialogue on the place the Gandhian plan occupies in constitutional discourse (Chaganti and Baxi).[10] Deliberations on the various epistemic challenges around human rights (Kakarala and Baxi).[11] Even as the book is largely Baxi talking, the animated back-and-forth of the discussions and the editorial prompts do not allow it to become a self-driven autobiographical monologue. Rather, it is Baxi talking about his life and work as prodded by the prompts of his interested and interesting listeners.

The dialogues are accentuated by the variety in the prompts, which I categorise as descriptive, explanatory, exploratory, reflective, and some which have the shades of all of them. The descriptive autobiographical questions seek information in order to understand how the life he lived contributed to his intellectual history, such as: 'When was Baxi the avid reader made? What were the intellectual resources available to you when you were growing up in the 1940s and 1950s?'[12] or 'Why did you study law when Nehru was asking everyone to become an engineer?'[13] Then there are a range of explanatory questions around collective political violence, especially the question that Narrain and Kakarala raise on K Balagopal's thought on the connection between reformism and revolutionary violence[14] and how questions of justification need to be addressed in state and rebel killing.[15] But, in the same genre, Liang asks an exploratory question, 'What does it mean to represent another?'[16] and 'How is it different from speaking with others?'[17] Narrain chimes in to ask if Baxi would refer to Gandhi as speaking with others?[18] along with 'Is there an Indian Legal Theory?'[19] and 'What would it mean to chart an agenda of research for the future given the developments that have taken place after *Sociology of Indian Law* [was published]?'[20] All these may be considered exploratory prompts. Reflective ones include

[8] ibid 271.
[9] ibid 315–322.
[10] ibid 323–330.
[11] ibid 498–513.
[12] ibid 44.
[13] ibid.
[14] ibid 263–264.
[15] ibid 265.
[16] ibid 189.
[17] ibid.
[18] ibid. 'Where would you locate the ethical impulse of constitutionalism today?' is another example (ibid 330).
[19] ibid 367.
[20] ibid 387. The book referenced is Baxi's *Towards a Sociology of Indian Law* published in 1986.

conversations on his writing being marked by sensuality in unexpected areas[21] or with the presence of his personal voice—questions that come in the third chapter.[22]

The prompts demonstrate that the book is a product of Baxi and Co, where the questions have triggered, though not necessarily controlled, Baxi's responses. Since the book has autobiographical glosses but is not pure-bred autobiography, the uses to which autobiographies are put to may not be available to it.[23] Yet, as already mentioned, its atypical constitution opens up the book to various readings. Before engaging with these multiple utilities, I look at the themes that emerge from Baxi's story, the telling of which is the meta-objective of the book. I would presume that the book will mostly be picked up to partake of that story and obtain a life context to Baxi's work.

II THE LIFE AND WORK OF UPENDRA BAXI

Even as I have titled this section 'Life and Work', I wonder at the conjunction, because even now, in his swinging eighties, work *is* life for Upendra Baxi. It seems that diversion for him is primarily a change in the kind of work he does. I studied Jurisprudence, Research Methodology, and Law and Society with Baxi during my LLM and then had him as my guide for my doctoral thesis. These professional interactions have primarily driven my association with him. Despite a nearly fifty-year-long association with the teacher, writer, and scholar, I have only scraps of biographical information on him. The biographical narrative of this book provides an experiential context not just to Baxi's work choices but the manner in which that work has been undertaken.

The early years tell us how Baxi lost an academic year due to the fast and loose manner in which his university determined the rules of eligibility. He speaks of the 'pain of isolation' and learning early 'what injustice meant in academic life'.[24] One wonders if his ability to interpret rules from the standpoint of the recipient of a decision comes from this experience.[25] The recognition of his scholastic contribution by the University of Berkley in awarding him a doctorate; the chair invitation from Delhi University; and senior people not allowing his impudence to outshine his

[21] ibid 72.

[22] ibid 334.

[23] On the various uses of autobiography, see ibid 44–45.

[24] ibid 53.

[25] Interestingly, though flowing from the same learning, he taught me how to write an application by putting myself in the chappals of the administrator.

competence may have enabled him to pay forward. Baxi does not use age or seniority to evaluate the work of others.[26]

The book recounts a range of social reform initiatives that Baxi undertook. However, be it social action litigations (SAL) he instituted[27] or supported,[28] research agendas he proposed,[29] or educational reforms he initiated,[30] the all-consuming motivation seems to be to push for structural change whether by creating sites of dialogue or outlets for dissent. He is impatient with initiatives that are limited to the episodic; he especially points to public interest actions filed without considering who bears the cost of moving the court. His celebration of his identity as a teacher is also tied to his commitment to long-term and lasting change. Baxi, at several points in the book, states that 'teaching is often a resource for the movement, a strategy for articulating moral concerns'.[31] Thus, 'the principal function of legal education is to produce soldiers of constitutional justice and not the shoulders for State or the Market'.[32] In the same spirit, he forges a link between the quest for social justice and core academic activities when he says 'research is about understanding the existence and situation of the people you are trying to help'.[33] He then stresses on the fiduciary nature of the activity, pointing out that without 'ethical reflexivity one ends up almost exploiting the suffering of the other'.[34]

His compulsion to change existing social, economic, and political structures comes from seeing and understanding the suffering and oppression they cause and perpetuate. Understanding that

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[26] I recall the induction of Chhatrapati Singh in the University Grants Commission's Curriculum Development Committee (1988–1990) as one example. All other members of the committee were very senior professors with decades of experience. Chhatrapati, in comparison, was an early career academic who had joined the Indian Law Institute in 1983 and published his doctoral thesis on philosophy of law in 1986. More personally, I remember that Baxi asked me to submit an LLM term paper to the *Journal of Indian Law Institute* at a time when the journal was seen as the ultimate recognition of scholastic calibre, a suggestion that overwhelmed both the journal editor and me.

[27] Narrain et al (n 1) 406–407. The Agra Protective Home Case was jointly filed by Upendra Baxi and Lotika Sarkar.

[28] ibid 416. This refers to the SAL filed by the University of South Gujarat.

[29] Baxi, 'Socio-Legal Research in India—A Programschrift' (1982) 24(2 and 3) Journal of Indian Law Institute 416.

[30] Baxi 'Notes towards a Socially Relevant Legal Education: A Working Paper for the UGC Regional Workshop in Law' (1976) 5(1–3) Journal of the Bar Council of India 1.

[31] Narrain et al (n 1) 419, fn 1.

[32] ibid 470.

[33] ibid 407.

[34] ibid.

the instrument of law can be complicit in oppression,[35] he sees it as both his personal and professional obligation to 'read the face of the suffering other', 'do things with what you read', and 'bend the law towards justice'. In the open letter, Baxi compelled the apex court to confront its stereotypes of caste, class, and gender.[36] In the Agra Protective Home Case, he challenged the rule of standing by which only directly aggrieved persons may approach the court.[37]

In accord with this perspective of using law for the oppressed other, he defines theory as 'an alternate explanation, an alternate reality … They are accounts that either problematise or justify courses of action in relation to human rights … Theories are material forces which shape the world and react upon the world.'[38] Consequently, in his view, 'to theorise is to work on, work with, re-tool and re-craft dilemmas of action and to take responsibility in struggle'.[39] Since Baxi is intent on making space for this alternative imagination, he describes his work as 'implicitly theoretical',[40] denies being a meta-theorist, and describes himself as a 'labourer in the sphere of theory construction, more like a bricklayer than an architect'.[41] With this articulation, he provides an insight into the forces driving his work, an explanation that both readers and critics of Baxi's writings would need to engage with.

The chapters on the Emergency and the Mandal agitation document Baxi's involvement with big-ticket political developments in the country. Baxi describes the chapter on Emergency as his bouquet of individual memories. The chapter on the Mandal agitation too recounts his travails as a vice-chancellor battling to save his university.[42] Both chapters in different ways raise concerns

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[35] He pithily captures the idea in this phrase: 'the essence of a bourgeois right is the right to lawfully harm others' (ibid 50).

[36] Upendra Baxi, Vasudha Dhagamwar, Raghunath Kelkar, and Lotika Sarkar, 'Open letter to the Chief Justice of India' (1979) 4 Supreme Court Cases Journal 17.

[37] Narrain et al (n 1) 341. He called it a bourgeois concept and asked why in a democracy one could not move the court in the interest of another. He argued that the writ jurisdiction of the apex court as understood in the common law system was overridden by the text of Article 32 of the Constitution of India (1950) as it says 'writs in the nature of'. He added that the Indian Supreme Court must interpret standing in light of Part IV A of the Constitution of India and not as Lord Denning and other common law judges did.

[38] ibid 499.

[39] ibid 500.

[40] ibid.

[41] ibid.

[42] As I read the part where he narrates his gatecrashing into the house of the prime minister to save Delhi University, I was reminded of a similar act he had performed for the Indian Law Institute (ILI), New Delhi when he was the director (Research). Chambers were being built for the lawyers of the Supreme

around legality, the responsibilities that must accompany free speech, and the challenges of addressing collective political violence.

The book reports several systemic efforts that Baxi undertook to advance social justice,[43] to strengthen the legal system,[44] and to ensure that Indian perspectives on various issues were part of international understanding.[45] Except for the Bhopal gas leak catastrophe and the litigation surrounding it, which stayed with him one way or the other,[46] he records having to drop other efforts because that was the maximum he could do on his own.[47] Elsewhere in the book, he mentions other initiatives started by him that did not take off as the required collegial support was not forthcoming.[48] Among initiatives that he had long pushed for, there is at least one that has now been institutionalised—the appointment of law clerks for judges—though the fact that Baxi obtained the first breakthrough is not common public knowledge.[49]

III Learning with Baxi and Co

While discussing *Towards a Sociology of Indian Law*, Baxi states that he did the volume 'as a pedagogic concern'.[50] The volume under review here provides similar learning opportunities to its readers. More importantly, it provides advice for self-improvement, pedagogic growth, and

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Court behind ILI. While the chambers were proximate to the Supreme Court, access to them was a little roundabout. The then chief justice of India decided to make things easy for the lawyers by providing a passage from within ILI. The rear boundary wall of ILI was partially demolished to do the needful. The demolition was done without consulting ILI in any way. The chief justice of India is the ex-officio president of ILI. As soon as the wall was demolished, Baxi called up Chief Justice PN Bhagwati and told him that he would file a police complaint of criminal trespass against the chief justice if the wall was not repaired by that evening. The notice worked and the needful was done.

[43] Narrain et al (n1) 432. He undertook a socio-legal investigation for the Supreme Court on the Chamars of UP.

[44] ibid 211. Illustratively, he spearheaded an effort to initiate a dialogue on an Amnesty International report on Naxalites in Bengal.

[45] ibid 372. Baxi describes how he burned the midnight oil to create a critical survey of copyright law for a World Intellectual Property Organization meeting.

[46] ibid 456.

[47] ibid 430 and 432. He makes this statement on his efforts to promote legal journalism and with regard to his work on the Chamars of UP.

[48] ibid 392. He recalls an unfinished project to collect and publish the writings of expatriates on Indian constitutional law.

[49] Baxi visited every chief justice of India with a charter of judicial reforms, amongst which was a proposal to provide law clerks to judges. He succeeded in his efforts when Chief Justice Bhagwati appointed the late Moolchand Sharma and me as his law clerks.

[50] Narrain et al (n 1) 393.

agendas for legal research and social activism. The conversational format of the book derives from and feeds into Baxi's lifetime efforts to foster collegiality. This section elaborates on the above possibilities the book opens up for its readers.

A. Igniting and Feeding the Passion to Read

Even as he has continually protested that people have taken advantage of his reserves of knowledge, Baxi has, over his lifetime, operated as a mobile library, generously sharing his learnings with peers and students. Stories abound on the textual references people have obtained from him. This task, which Baxi performs almost reflexively, has also been systematically undertaken in this book by both him and the interlocutors. In fact, before asking Baxi the first set of questions, Liang reads out passages from philosopher Stanley Cavell's autobiography, *Little Did I Know: Excerpts from Memory (Cultural Memory in the Present)*, to draw out the connections between the lives we live and the work we do.[51] In response, Baxi admits that he has not read Cavell as closely as the others may have, especially Liang. But later in the book, Baxi goes on to add, 'because I did not do justice to your recall of Cavell in our early discussions, allow me to speak to it now a trifle more elaborately'.[52] And then follows his exposition on Cavell.

The various aspects of Baxi's work and life are mediated through such thoughtful exchanges on books and authors, continually inviting readers into this world. Even as Baxi expresses being displeased at the fact that 'people these days don't read books that were dated before they were born',[53] in typical teacher-like fashion, he speaks about books and authors that have helped him learn[54] and books that are critical for plumbing the depths of a field[55] as well as on why informed reading requires inter-textuality.[56]

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[51] ibid 43.

[52] ibid 45.

[53] ibid 159.

[54] ibid 183. Baxi refers to Stanley Cohen's *States of Denial: Knowing about Atrocities and Suffering* (2001) as his most favourite and poignant work on denialism, which helped him distinguish between literal, interpretive, and implicatory denial.

[55] ibid 257 and 384. He recommends BR Ambedkar's *What Congress and Gandhi Have Done to the Untouchables* (1979) as an embodied, erudite, and organic narrative of structural injustice. He also recommends James Willard Hurst's *Law and Economic Growth: The Legal History of the Lumber Industry in Wisconsin 1836–1915* (1964) as the book that should be read to understand how institutional history is done.

[56] ibid 309. He sets up a conversation on Robert Cover, Walter Benjamin, Jacques Derrida, and Karl Marx to understand the force of law.

This book provides not only references but also tips on how to read certain authors.[57] For example, we are told, 'Marx does not allow you to read him half-heartedly. You cannot read him and play tricks. …You cannot read him starting from the middle or beginning from the end. … You cannot speed read him.'[58] Or, after a detailed discussion on Balagopal, he says, 'Balagopal is not just a name, or just a civil rights activist, he is not just a thinker; he embodies these multiple contradictions between the exhaustion point of reformism and the exhaustion point of revolutionary violence, and he is still trying to negotiate a passage which does not betray the inspiration of total social change.'[59]

The details of every reference made, whether by Baxi or the editors, have been meticulously provided in either the bibliography or the accompanying footnotes. In these days of AI, reading lists and references are not hard to come by. But this book communicates the joy of reading and how discussing an interpretation or an analysis aids understanding. Most importantly, the book emphasises the ethical obligation to acknowledge all scholastic contributions[60] and that reading is an ongoing, never-ending activity.[61]

B. Providing Leads on Research

In my 'Introduction' to Baxi's writings on legal education,[62] I write that a Baxi text is replete with future agendas of research that are low-hanging fruits for other researchers. In these writings, Baxi lays out plans for himself and others. In this volume too, he flies innumerable kites on prospective research.[63]

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[57] ibid 268 and 313. On understanding Balagopal and on how to read Marx.

[58] ibid 313. Or, while referring to EP Thompson, Baxi asks for 'a little intellectual generosity in understanding the context in which he was writing … He was not a warrior of the cold war, espousing an ideology, he was a serious Marxist historian.' (ibid 290).

[59] ibid 268. He also talks about how Ambedkar needs to be read as one of the first theorists of biopolitics (ibid 368).

[60] ibid 369–370. He speaks of the many jurisprudence teachers and jurisprudentially inclined scholars before Rajeev Dhavan and himself as well as the signal contributions of many Indian scholars in the field of administrative law and international law.

[61] In a number of places, Baxi speaks of not having read an author and the need to look him up.

[62] Dhanda, 'Introduction' in Dhanda (ed) *Law, Justice, Society: Selected Works of Upendra Baxi, Volume 4*: *Legal Education* (Oxford University Press 2024) 4.

[63] Illustratively, the need to distinguish collective political violence when undertaken by the state and by insurgents [Narrain et al (n1) 259]. What would be the appropriate means to protest against deliberative institutions of democracy (ibid 440)? Why is the power of the academic mind to obtain accountability a relatively unknown cultural commodity in India (ibid 437)?

From a wide variety of suggestions strewn throughout the book, I shall illustrate this point with the following two examples.

There is a long exegesis in the chapter titled 'Sociology of Indian Law' on the manner in which legal history is taught and researched and how there is a need to question institutional developments rather than just describe them. One must ask, 'What lies behind all the effort at codification? What is the big difference between—which nobody looked at—the Company Raj and the Imperial takeover?'[64] There is a need, he points out, to look at the Proclamation of Queen Victoria, to look at its *text* 'to see how law can be deployed to mystify the total domination of the Empire; and to continue with the task of producing loyal subjects in the face of an incipient new decolonial stateness'.[65] Legal historians need to take up this task because historians generally do not read legislation and case law. Such tasks, Baxi holds, should not be carried out by denying the existence of prevalent legal history but by acknowledging the problematic nature of existing legal history and resituating it.

The other research proposal I find fascinating is the suggestion to look at the history of law publishing in India. Baxi here records his wonderment at the fact that the headnotes for the law publisher All India Reporter were prepared by a matriculate. Many eminent lawyers and judges learnt law from these headnotes. Without denying the repercussions that the practice may have on the operation of precedents in India, Baxi draws attention to the democratising impact of a service provided by a non-law person to persons of law. The research project, Baxi suggests, should seek responses to the following research questions: 'What was the conception of legal reporting? Of accuracy?' in the law reporting system subsisting in the country?[66] The academic community needs to appreciate, he points out, the connect between law reporters and juristic writing and find out where juridical writing was published in India before the onset of law reviews.[67]

As I have noted elsewhere,[68] Baxi's writings are replete with various kinds of taxonomies that aid scholarly analysis. Illustratively, the difference between Marx, Marxians, and Marxism;[69] coercion,

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[64] ibid 377.
[65] ibid.
[66] ibid 381.
[67] ibid 381–382.
[68] Dhanda (n 4) 8.
[69] Narrain et al (n 1) 274.

force, violence, terror and horror;[70] episodic and structural activism;[71] epistolary and bibliophilic scholarship;[72] six types of languages of human rights;[73] and eight ways of doing history[74] are some of the conceptual categories mentioned in the book.

C. Pedagogic Reflections

The aphorism 'taught law is tough law' is stated more than once in the book, primarily to emphasise that the way one teaches law or the way one is taught law is difficult to overcome later in life.[75] Consequently, it is necessary to consider how law is taught. Several times in the book, Baxi shares his efforts at building discussion forums, talk shops, and teachers' associations and clubs, continually emphasising the link between developing teaching methods and collegial interaction.[76]

The other reiterative beat relates to the learning generated by students,[77] especially those specialising 'in irreverence'.[78] He recalls two such stories in which the students' questions demanded intellectual work from him, the teacher. The first question was from a student in Australia who asked Baxi about the legal status and rights of indigenous people in India. This question effected Baxi's return to India, as he realised that he did not know enough about the indigenous people in his own country.[79] The second student he remembers asked him if there was anything in Hindu law or the *Manusmriti* that makes intercourse between a Brahmin man and an untouchable woman an offence.[80] The question arose in the context of a decision by the Bombay High Court where inheritance rights were denied to an illegitimate son begotten by a Shudra man and a Brahmin woman.[81] Such inheritance rights, the court held, were only allowed if the illegitimate son was begotten in a union between a Brahmin man and a Shudra woman.

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[70] ibid 276.
[71] ibid 411.
[72] ibid 416.
[73] ibid 353.
[74] ibid 395–396.
[75] ibid 383.
[76] ibid 373–374.
[77] ibid 404.
[78] ibid 378.
[79] ibid 127.
[80] ibid 255.
[81] *Ramchandra Doddappa Naik v Hanamnaik* [1935] 37 Bombay Law Reports 920.

What impressed Baxi was the sensitivity and intelligence with which the young woman, in asking that question, brought home the reality of caste-based discrimination to everyone.

There are also suggestions on course materials,[82] on how to make theory and jurisprudence integral to law teaching,[83] and a plethora of aphorisms that could help enhance both classroom presence and performance of law teachers.[84]

D. Ethics of Activism

Activism, Baxi states unequivocally, requires speaking from the heart and thinking from the blood[85] in order 'to make the episodic structural and to reconstruct the binary'.[86]At several points in the book, he raises the question of the activist's accountability by asking at whose cost the activist learns.[87] In another exhortation, he insists, an activist is required 'to be at the tap, not the top … has to co-suffer and learn'.[88] Therefore, there is a need to 'distinguish between narcissistic engagement with a social cause and an other-directed one'.[89] In the wake of these critical qualities of activism, Baxi yet again differentiates between public interest litigation (PIL) and SAL to point out that while PIL can be about individual petitioners, SAL 'anonymises to collectivise'.[90] His elaboration on the two categories yet again shows that his objection to the use of the term PIL is not linguistic but conceptual.[91] It is therefore foundationally incorrect to conflate the two

[82] He talks about how Benjamin and other criminal law theorists need to be inducted into criminal law courses because the Code cannot be explained on its own terms (ibid 291 and 487). He also speaks of how reports of various fact-finding commissions can be primary materials for courses on collective political violence (ibid 493).

[83] ibid 485. Since jurisprudence is to think about law, the absence of a separate course means that every course should be a course in jurisprudence.

[84] Illustratively: 'We all think that we think but that does not make us all thinkers'; 'Originality is not given, it is sometimes spontaneous and sometimes a work of infinite imaginative labour'; 'Justice can never rise beyond the necessities of the time'; 'Studying how the fly was caught in the fly-bottle is important, but equally even more crucial is to show it a way out.'

[85] Narrain et al (n 1) 408.

[86] ibid 411.

[87] ibid 410.

[88] ibid 348.

[89] ibid 348.

[90] ibid 410.

[91] For an elaborate exposition on Baxi's use of the term social action litigation, see 'Introduction' in Narrain et al (n 1) 19–26.

categories and blithely say, 'PIL, which Professor Baxi calls SAL' and then place on him the responsibility of setting right all the ills of the PIL.[92]

V ASKING FOR MORE

When Liang points out that the Warwick years brought a density to Baxi's writing,[93] the latter agrees that his 'international work does not have the same quality of lyricism' as his local work.[94] Thereby, in some way, he admits that the former came from his head and not his heart. And yet, for a book that is replete with the power of emotion and the need to co-suffer and co-create, Baxi's narration of his own life is overly cerebral. The only place where he reveals a chink in the armour is when he says, 'I have been gossiped about endlessly and I find it terrifying. I do not know how to understand this as a social dimension of Indian life.'[95] Since there is no mention of the lived experiences that triggered the remark, the interviewers don't have an opportunity to ask how he dealt with the half-truths, the lies, the fabrications, and the resentment. Baxi nurtured the project to create the National Law School in Bengaluru for nearly a decade and then was not its founder-director. How did he deal with the disappointment? These reflections are needed not as grist for the gossip mill but as counsel for others with similar challenges. Further, I both feel and think that a public admission of vulnerability by persons perceived to be strong helps create a culture of human kindness.

Both this book and the selected works of his writings[96] show that Baxi has undertaken a lot of collaborative work—some where his contribution is acknowledged, others where it is invisible, and still others where he has shared credit with nominal co-authors. In some of his more recent writings, he has started to apportion credit in proportion to the contribution.[97] Considering his

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[92] The most recent appeal being the one which came from Justice BV Nagarathna. In an event for the release of Baxi's selected works, the judge appealed to the professor to now address the misuse of PIL. 'Supreme Court Judge Nagarathna Flags Misuse of PIL' (*Economic Times*, 4 March 2025) <https://economictimes.indiatimes.com/news/india/sc-judge-justice-nagarathna-flags-n misuse-of-pils/articleshow/118714490.cms?from=mdr>.

[93] Narrain et al (n 1) 454.

[94] ibid 358.

[95] ibid 445.

[96] Amita Dhanda, Arun Thiruvengadam, and Kalpana Kannabiran (eds), *Law, Justice, Society: Selected Works of Upendra Baxi,* 4 Volumes (Oxford University Press 2024).

[97] I recall an anecdote Baxi narrated on the ethics of referencing and how the task has to be fair to both other scholars and oneself. He had been exploring a particular argument in conflict of laws and just as he was about to wrap up his piece, he found a reading that had already made an argument similar to his own. Yet, he had reached a similar conclusion without any knowledge of the other writing. He could not

work graph, I would have liked to hear him speak on the challenges of anonymised collective work.

I was also surprised that in a narrative about a life full of onerous responsibilities and innumerable relationships and umpteen experiences, there is not even one story of folly or misjudgement or plain mistake. There are many references to the need for and the power of reflection, yet Baxi has not discussed situations that may have necessitated reflection. Even as we concede to the reality of human frailty, each one has different strategies to cope with their fall from grace. Baxi's public reflection on this count would have been somewhat equivalent to the haircut he, as the chief proctor at Gwyer Hall,[98] got in the hostel lawn after the hostel barber complained that following his lead, men hostelers had started growing their hair, costing the barber his livelihood. Such public reflection on his vulnerabilities would have showed us, just as his public haircut did, that despite his larger-than-life stature and long hair, Baxi too needs support and a haircut like the rest of us.

suppress the other writing, but to just simply cite it would have rendered his own scholastic efforts null. Ultimately, Baxi resolved the dilemma by citing the scholar who had made the argument earlier but also recorded his independent research so that he did not shortchange his own effort.

[98] The hall of residence for male students at the University of Delhi.